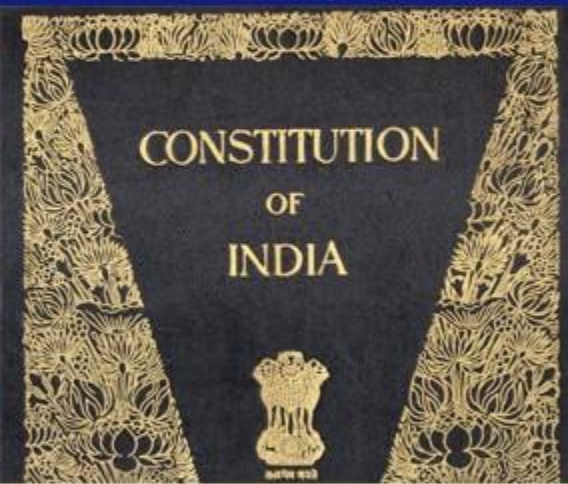


INDIAN POLITY

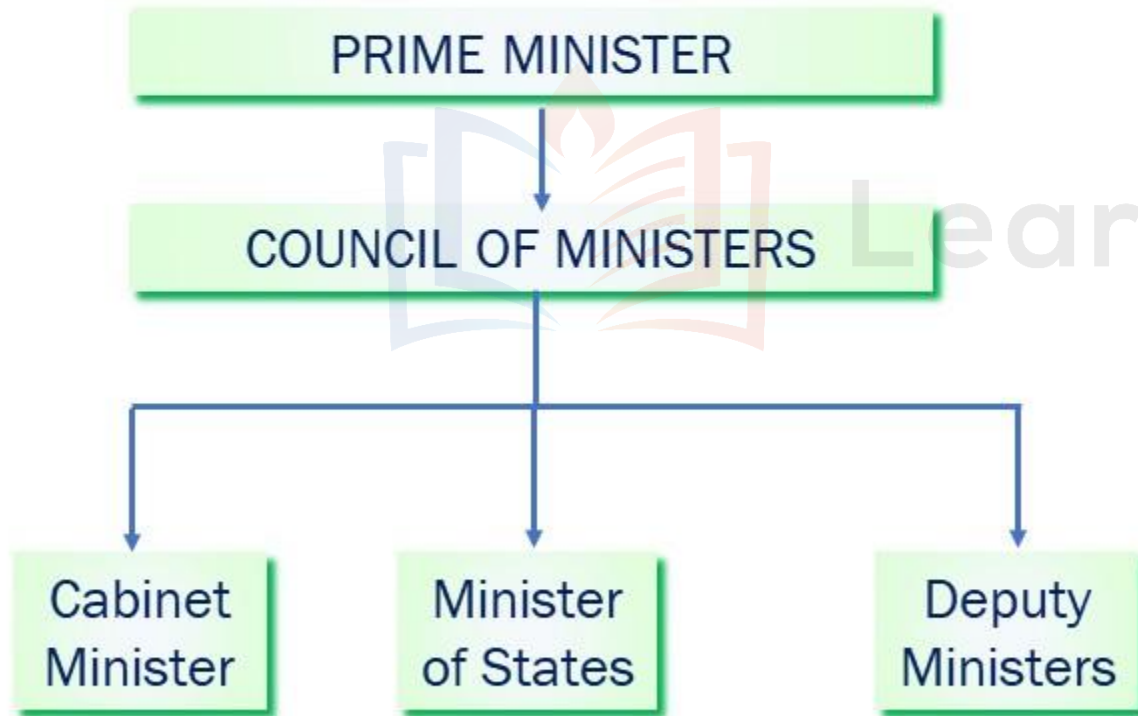


MODULE - 60

**CENTRAL COUNCIL
OF MINISTERS**

CENTRAL COUNCIL OF MINISTERS

COMPOSITION OF THE COUNCIL OF MINISTERS



- 1 The council of ministers consists of three categories of ministers, namely, **cabinet ministers, ministers of state, and deputy ministers**.
- 2 The difference between them lies in their **respective ranks, emoluments, and political importance**.
- 3 At the top of all these ministers stands the **Prime Minister** the supreme governing authority of the country.

CENTRAL COUNCIL OF MINISTERS

COMPOSITION OF THE COUNCIL OF MINISTERS

CABINET MINISTERS

- 4 The cabinet ministers head the **important ministries of the Central government** like home, defence, finance, external affairs and so forth.
- 5 They are members of the cabinet, attend its meetings and play an important role in deciding policies.
- 6 Thus, **their responsibilities extend over the entire gamut of Central government.**

MINISTERS OF STATE

- 7 The ministers of state can either be given **independent charge of ministries /departments** or can be attached to cabinet ministers.
- 8 In case of attachment, they may either be given the charge of departments of the ministries headed by the cabinet ministers or allotted specific items of work related to the ministries headed by cabinet ministers.
- 9 In both the cases, they work under the supervision and guidance as well as under the overall charge and responsibility of the cabinet ministers.

CENTRAL COUNCIL OF MINISTERS

COMPOSITION OF THE COUNCIL OF MINISTERS

MINISTERS OF INDEPENDENT CHARGE

- 10** In case of independent charge, they perform the **same functions and exercise the same powers** in relation to their ministries/ departments as cabinet ministers do.
- 11** However, they are not members of the cabinet and **do not attend the cabinet meetings unless specially invited** when something related to their ministries/departments are considered by the cabinet.

DEPUTY MINISTERS

- 12** Next in rank are the deputy ministers. They are not given independent charge of ministries / departments.
- 13** They are **attached to the cabinet ministers or ministers of state** and assist them in their administrative, political, and parliamentary duties.
- 14** They are **not members of the cabinet and do not attend cabinet meetings.**

CENTRAL COUNCIL OF MINISTERS

COMPOSITION OF THE COUNCIL OF MINISTERS

PARLIAMENTARY SECRETARIES

- 15 It must also be mentioned here that there is one more category of ministers, called Parliamentary Secretaries.
- 16 They are the members of the last category of the council of ministers (which is also known as the 'ministry'). They have no department under their control.
- 17 They are attached to the senior ministers and assist them in the discharge of their parliamentary duties.

DEPUTY PRIME MINISTER

- 18 At times, the council of ministers may also include a deputy Prime Minister. The deputy prime ministers are appointed mostly for political reasons.

CENTRAL COUNCIL OF MINISTERS

CONSTITUTIONALITY OF PARLIAMENTARY SECRETARIES

WHO ARE PARLIAMENTARY SECRETARIES?

- 1 Many states in the Indian Union have instituted the post of Parliamentary Secretary.

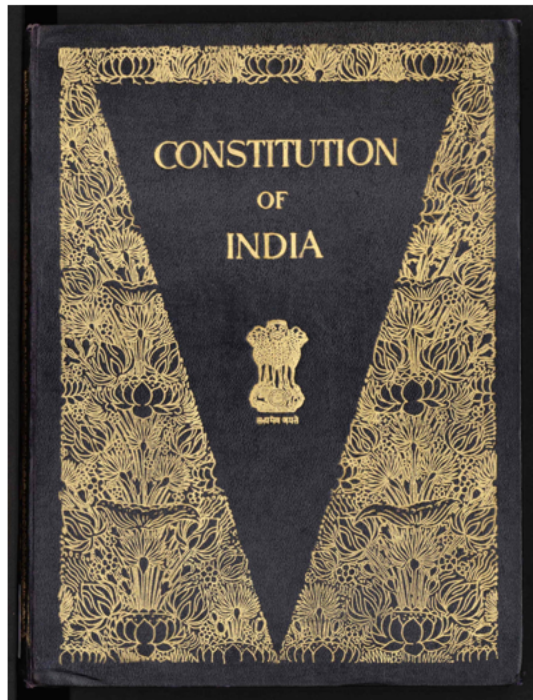


- 2 A Parliamentary Secretary is assigned to a government department.
- 3 They **assist the ministers** in the discharge of their parliamentary duties.
- 4 Manipur, HP, Mizoram, Assam, Rajasthan, Punjab, Goa are some of the states where MLAs have been appointed Parliament Secretaries by the Government.

CENTRAL COUNCIL OF MINISTERS

CONSTITUTIONALITY OF PARLIAMENTARY SECRETARIES

WHAT IS THE ISSUE BEHIND PARLIAMENTARY SECRETARIES?



- 5 Today however, they are appointed to *compensate the loss incurred after the 91st Amendment to the Constitution*, which limits the size of the Council of Ministers at the Centre and the States to *no more than 15 per cent of the members in the Lok Sabha or the State Legislature*.
- 6 PILs filed in various High Courts on the matter have argued that *the appointment of Parliament Secretaries is ultra vires the 91st Amendment of the Indian Constitution* which introduced Article 164 (1A) to the Constitution.

CENTRAL COUNCIL OF MINISTERS

CONSTITUTIONALITY OF PARLIAMENTARY SECRETARIES

WHAT IS ARTICLE 164(1A) ALL ABOUT?



M.N VENKATACHALIAH

- 1 Article 164 (1A) provides for limiting the number of ministers in the state cabinets.
- 2 The total number of ministers including the Chief Minister, has to be within 15 per cent of the total number of members of the legislative assembly of the state.
- 3 Article 164 (1A) was inserted in the Constitution on the recommendation of the **National Commission for Review of the Working of the Constitution** headed by former Chief Justice of India, M.N. Venkatachaliah.

CONSTITUTIONALITY OF PARLIAMENTARY SECRETARIES

WHAT ABOUT COURT RULINGS REGARDING THE APPOINTMENT OF PARLIAMENTARY SECRETARIES?



Various High Courts have deemed the appointment of Parliamentary Secretaries unconstitutional and have ruled against such appointments often in the past.

1 CASE 1 :

- In 2009, in the case of Adv. Aires Rodrigues vs The State of Goa and others (as cited in Anami Narayan Roy vs. Union of India), a Division Bench of the Bombay High Court discussed the **impact of arbitrary State action relating to appointment of Parliament Secretaries in Goa.**
- It held that appointing Parliamentary Secretaries of the rank and status of a Cabinet Minister is in violation to Article 164 (1A) of the Constitution and **set aside the appointment of two Parliamentary Secretaries in the state government.**

CONSTITUTIONALITY OF PARLIAMENTARY SECRETARIES

WHAT ABOUT COURT RULINGS REGARDING THE APPOINTMENT OF PARLIAMENTARY SECRETARIES?



2 CASE 2:

- In 2005, in Citizen Rights Protection Forum vs Union of India and Others (decided on 18 August, 2005), the Himachal Pradesh High Court quashed the appointment of Parliament Secretaries.
- It held that '(Parliamentary Secretaries) are usurpers of public office since their appointments did not owe their origin to any constitutional or legal provision, they having been appointed by person(s) not vested with the power of appointment'.

CONSTITUTIONALITY OF PARLIAMENTARY SECRETARIES

WHAT ABOUT COURT RULINGS REGARDING THE APPOINTMENT OF PARLIAMENTARY SECRETARIES?

3 CASE 3:

Recently, newspapers have reported that the **Rajasthan High Court** issued **notices to thirteen Parliamentary Secretaries** in a petition challenging their appointments.



4 CASE 4:

- Similarly, there have been news reports that the **Punjab High Court** has asked the state governments in Punjab and Haryana to provide information on appointment of Chief Parliamentary Secretaries in the states.
- Punjab and Haryana have appointed 20 and 11 Chief Parliamentary Secretaries respectively.

CENTRAL COUNCIL OF MINISTERS

CONSTITUTIONALITY OF PARLIAMENTARY SECRETARIES

WHAT ABOUT COURT RULINGS REGARDING THE APPOINTMENT OF PARLIAMENTARY SECRETARIES?

5

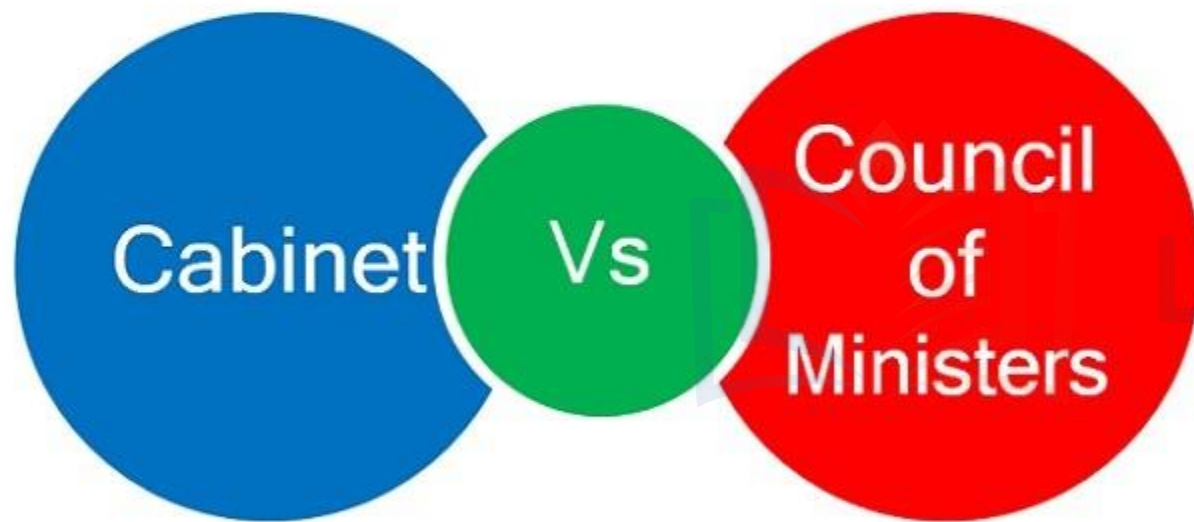
CASE 5:

Similarly, in Delhi, 21 MLAs who were made as Parliamentary Secretaries were challenged before the Delhi HC.



CENTRAL COUNCIL OF MINISTERS

COUNCIL OF MINISTERS Vs CABINET



- 1 The words 'council of ministers' and 'cabinet' are often used interchangeably though there is a definite distinction between them.
- 2 They differ from each other in respects of composition, functions, and role.
- 3 These differences are shown in following Table.

CENTRAL COUNCIL OF MINISTERS

DISTINCTION BETWEEN COUNCIL OF MINISTERS AND CABINET

S.No.	COUNCIL OF MINISTERS	CABINET
1	It is a wider body consisting of 60 to 70 ministers.	It is a smaller body consisting of 15 to 20 ministers.
2	It includes all the three categories of ministers, that is, cabinet ministers, ministers of state, and deputy ministers.	It includes the cabinet ministers only . Thus, it is a part of the council of ministers.
3	It does not meet, as a body, to transact government business . It has no collective functions.	It meets, as a body, frequently and usually once in a week to deliberate and take decisions regarding the transaction of Government business . Thus, it has collective functions.
4	It is vested with all powers but in theory .	It exercises, in practice, the powers of the council of ministers and thus, acts for the latter.

CENTRAL COUNCIL OF MINISTERS

DISTINCTION BETWEEN COUNCIL OF MINISTERS AND CABINET

S.No.	COUNCIL OF MINISTERS	CABINET
5	Its functions are determined by the cabinet.	It directs the council of ministers by taking policy decisions which are binding on all ministers.
6	It implements the decisions taken by the cabinet.	It supervises the implementation of its decisions by the council of ministers.
7	It is collectively responsible to the Lower House of the Parliament.	It enforces the collective responsibility of the council of ministers to the Lower House of Parliament.

CENTRAL COUNCIL OF MINISTERS

DISTINCTION BETWEEN COUNCIL OF MINISTERS AND CABINET

S.No.	COUNCIL OF MINISTERS	CABINET
8	- It is a constitutional body, dealt in detail by the Articles 74 and 75 of the Constitution. - Its classification into a three-tier body is based on the conventions of parliamentary government as developed in Britain. - It has, however, got a legislative sanction. - Thus, the Salaries and Allowances Act of 1952 defines a 'minister' as a 'member of the council of ministers, by whatever name called, and includes a deputy minister'.	- It was inserted in Article 352 of the Constitution in 1978 by the 44th Constitutional Amendment Act. - Thus, it did not find a place in the original text of the Constitution. - Now also, Article 352 only defines the cabinet saying that it is 'the council consisting of the prime minister and other ministers of cabinet rank appointed under Article 75' and does not describe its powers and functions. - In other words, its role in our politico-administrative system is based on the conventions of parliamentary government as developed in Britain.

CENTRAL COUNCIL OF MINISTERS

1 The highest decision-making authority in our politico-administrative system.

2 The chief policy formulating body of the Central government.

3 The supreme executive authority of the Central government.

4 Chief coordinator of Central administration.

5 An advisory body to the president and its advice is binding on him.

9 Deals with all foreign policies and foreign affairs.

8 It exercises control over higher appointments like constitutional authorities and senior secretariat administrators.

7 Deals with all major legislative and financial matters.

6 It deals with all critical situations of the government

ROLE OF CABINET

CENTRAL COUNCIL OF MINISTERS

1

Ramsay Muir

“The Cabinet is the steering wheel of the ship of the state.”

2

Lowell

“The Cabinet is the keystone of the political arch”.

3

Sir John Marriott

“The Cabinet is the pivot around which the whole political machinery revolves”.

4

Gladstone

“The Cabinet is the solar orb around which the other bodies revolve”.

8

L.S. Amery

“The Cabinet is the central directing instrument of Government”.

7

Sir Ivor Jennings

“The Cabinet is the core of the British Constitutional System. It provides unity to the British system of Government”.

6

Bagehot

“The Cabinet is a hyphen that joins, the buckle that binds the executive and legislative departments together”.

5

Barker

“The Cabinet is the magnet of policy”.

ROLE DESCRIPTIONS

CENTRAL COUNCIL OF MINISTERS

ROLE DESCRIPTIONS



9 The position of the Cabinet in the British Government has become so strong that Ramsay Muir referred to it as the “Dictatorship of the Cabinet”.

10 In his book ‘How Britain is Governed’, he writes “A body which wields such powers as these may fairly be described as ‘omnipotent’ in theory, however, incapable it may be of using its omnipotence.

11 The same description holds good in the Indian context too.



Ramsay Muir

“Its position, whenever it commands a majority, is a dictatorship....”

CENTRAL COUNCIL OF MINISTERS



6 Every prime minister in India has had his 'Inner Cabinet' a circle within a circle. During the era of Indira Gandhi, the 'Inner Cabinet' which came to be called the 'Kitchen Cabinet' was particularly powerful.

1 The cabinet, a small body consisting of the prime minister as its head and some 15 to 20 most important ministers, is the highest decision-making body in the formal sense.

5 It is composed of not only cabinet ministers but also outsiders like friends and family members of the prime minister.

KITCHEN
CABINET

2 However, a still smaller body called the 'Inner Cabinet' or 'Kitchen Cabinet' has become the real centre of power.

4 It advises the prime minister on important political and administrative issues and assists him in making crucial decisions.

3 This informal body consists of the Prime Minister and two to four influential colleagues in whom he has faith and with whom he can discuss every problem.

CENTRAL COUNCIL OF MINISTERS

KITCHEN CABINET

MERITS



- 7 The prime ministers have resorted to the device of 'inner cabinet' (extra-constitutional body) due to its merits, namely:
- 1) It **being a small unit**, is much more **efficient decision-making body** than a large cabinet.
 - 2) It can meet more often and deal with business much **more expeditiously** than the large cabinet.
 - 3) It helps the Prime Minister in **maintaining secrecy** in making decisions on important political issues.

DEMERITS



- 8 However, it has many demerits also. Thus,
- 1) It **reduces the authority and status of the cabinet** as the highest decision-making body.
 - 2) It **circumvents the legal process** by allowing **outside persons** to play an influential role in the government functioning.

CENTRAL COUNCIL OF MINISTERS

KITCHEN CABINET

ARTICLE NO.	SUBJECT MATTER
74	Council of Ministers to aid and advise President
75	Other provisions as to Ministers
77	Conduct of business of the Government of India
78	Duties of Prime Minister as respects the furnishing of information to the President, etc.

9 The phenomenon of 'kitchen cabinet' (where decisions are cooked and placed before the cabinet for formal approval) is not unique to India.

10 It also exists in USA and Britain and is quite powerful in influencing government decisions there.

WE EXPRESS OUR SINCERE THANKS FOR VIEWING THIS VIDEO

Presented by



Learning Space

For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

OUR TEAM

G. V. Rao
K. Srikanth
D. Sunil Kumar
L. V. Krishna
Y. Deepthi

Amrita Naidu
M. Binukrishna
G. Ravi Babu
D. Joji
K. Victor Babu

Visit us at:

www.learningspacedigital.com

0 8 6 6 -2 4 4 4 4 7 2
0 9 8 4 9 9 4 2 2 9 9